

SCHEDULE.

REGULATIONS APPLYING SECTIONS TWENTY-FOUR AND TWENTY-FIVE OF THE VOLUNTEER ACT, 1863.

The officers and men of a division of the Royal Naval Volunteer Reserve may from time to time make rules for the management of the property, finances, and civil affairs of the division, and may alter and repeal any such rules; but any such rules shall not have effect unless and until they shall be approved by the Admiralty, and upon such approval the same shall be binding on all persons.

A copy of the rules in print or writing, or partly in print and partly in writing, certified under the hand of the commanding officer of the division as a true copy of the rules whereof the Admiralty's approval has been notified as aforesaid, shall be conclusive evidence of the rules of the division.

All moneys subscribed by, or to, or for the use of any division, or of any company in such division, and all effects belonging to such division or company respectively, or lawfully used by it, not being the property of any individual officer, petty officer, or man, or member of the instructional staff, and the exclusive right to sue for and recover money due to the division or to any such company as aforesaid, and all lands acquired by such division or company, shall vest in the commanding officer of the division for the time being and his successors in office, with power to him and his successors to sue, to make contracts and conveyances, and to do all other lawful things relating thereto; and any civil or criminal proceedings taken by virtue of the present section by the commanding officer of a division shall not be discontinued or abated by his death, resignation, or removal from office, but may be carried on by and in the name of his successor in office.

CHAPTER 26.

An Act to authorise, for the purpose of Marriages in the United Kingdom, the Publication of Banns and the Issue of Certificates on board His Majesty's Ships in certain cases.
[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Where one of the parties to a marriage intended to be solemnised in England after the publication of banns is an officer, seaman, or marine, borne on the books of one of His Majesty's ships at sea, the banns may be published on three successive Sundays at morning service on board that ship by

Publication of
banns on board
His Majesty's
ships.

the chaplain, or, if there is no chaplain, by the captain or other officer commanding the ship, and, where banns have been so published, the person who published them shall, unless the banns have been forbidden on any of the grounds on which banns may be forbidden, give a certificate of publication.

Issue of certificates on board His Majesty's ships.

2. Where one of the parties to a marriage intended to be solemnised or contracted in England otherwise than after the publication of banns, or by licence, or by special licence, is an officer, seaman, or marine borne on the books of one of His Majesty's ships at sea, he may give notice of his intention to the captain or other officer commanding the ship, together with the name and address of the other party to the marriage, and such other information as may be necessary to enable the captain or other officer to fill up a certificate under this section, and shall at the same time make and sign such a declaration as is required by section two of the Marriage and Registration Act, 1856, and the captain or other officer may attest the declaration and thereupon issue a certificate to the officer, seaman, or marine giving the notice.

19 & 20 Vict. c. 119.

Application of enactments.

3. A certificate given under this Act shall be in such form as may be prescribed by the Admiralty, and shall have the like force and effect as a certificate of publication of banns in a place of worship in which banns may lawfully be published or a certificate by a superintendent registrar under the Marriage and Registration Act, 1856, as the case may be, and all enactments (including penal provisions) relating—

- (1) to the publication of banns and certificates thereof; and
- (2) to notices and declarations for obtaining certificates from superintendent registrars, and to such certificates;

and all rules required under any such enactments to be observed shall apply in the case of marriages to which this Act applies, subject to such adaptations therein as may be made by His Majesty by Order in Council.

Application to Scotland.

4. Where any such marriage as aforesaid is intended to be solemnised or contracted in Scotland, this Act shall apply subject to the following modifications:—

- (a) References to the registrar shall be substituted for references to the superintendent registrar:
- (b) References to the Marriage Notice (Scotland) Act, 1878, shall be substituted for references to the Marriage and Registration Act, 1856:
- (c) A certificate of publication of banns under this Act shall have the same force and effect as a certificate granted by a session clerk or other proper officer for granting the same of the due proclamation of the banns of marriage under the law of Scotland.

41 & 42 Vict. c. 43.

5.—(1) Where any such marriage as aforesaid is intended to be solemnised or contracted in Ireland, this Act shall apply subject to the following modifications:—

Application to Ireland.

(a) References to a district registrar of marriages in Ireland shall be substituted for references to a superintendent registrar:

(b) References to the Marriage Law (Ireland) Amendment Act, 1863, shall be substituted for references to the Marriage and Registration Act, 1856, except that so much of section four of the first-mentioned Act as requires a declaration of attendance at a place of worship in respect of the male party shall not apply in the case of declarations under this Act or made for the purposes of a marriage under this Act.

(2) Where one of the parties to a marriage intended to be solemnised or contracted in Ireland by licence from a district registrar of marriages in Ireland is an officer, seaman, or marine borne on the books of one of His Majesty's ships at sea, the provisions of section two of this Act as applied to Ireland shall apply as if the marriage was intended to be had without licence, and the notice to be given by the other party to the intended marriage need contain no statement as to his abode or residence in any district in the United Kingdom; but, before the district registrar issues the licence, the certificate of the captain or other officer of the ship given under this Act shall be produced to him.

6. This Act may be cited as the Naval Marriages Act, 1908, and shall come into operation on the first day of January nineteen hundred and nine.

Short title and commencement.

CHAPTER 27.

An Act to render Married Women with a separate Estate liable for the support of their Parents.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. A married woman having separate property shall be subject to all such liability for the maintenance of her parent or parents as a feme sole is now by law subject to for the maintenance of such parent or parents.

Married women having separate property to be liable for the maintenance of parents.

2. This Act shall apply only to England and Wales.

Extent of Act.